

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
LEQUAN ELEY,

SUMMONS

Plaintiff,

Plaintiff designates Bronx County
as the place of trial.

against

Basis of Designation:
Plaintiff's Residence

THE CITY OF NEW YORK and P.O. Assad and P.O.
Arias,

Plaintiff Resides in Bronx County

Defendants.
-----X

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, NY
November 3, 2020

RAWLINS LAW, PLLC

/s/

Gary Rawlins, Esq.
Attorney for Plaintiff

LEQUAN ELEY
777 Westchester Ave, Suite #101
White Plains, NY 10604
Tel: (212) 926-0050
Fax: (347) 332-1592

TO:

CITY OF NEW YORK

Corporation Counsel

New York City Law Department

100 Church Street

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
LEQUAN ELEY,

VERIFIED COMPLAINT

Plaintiff,

against

THE CITY OF NEW YORK and P.O. ASSAD and P.O.
ARIAS,

Defendants.
-----X

Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,
respectfully alleges, upon information and belief that:

INTRODUCTION

1. This is an action for money damages brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution against THE CITY OF NEW YORK and P.O. JOHN DOE #1-6, police officers of the City of New York, in their individual capacities as New York City Police Officers acting under color of law. Jurisdiction is based upon 28 U.S.C. §§ 1331 and 1343.
2. It is alleged that the individual police officer defendants made an unreasonable seizure of the person of LEQUAN ELEY, violating his rights under the Fourth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the City of New York.

THE PARTIES

3. That at all times herein mentioned, defendant CITY OF NEW YORK (hereinafter "the City") was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

4. That prior to the institution of this action, on December 18, 2017, a notice of claim and notice of intention to sue was duly served upon and filed with the defendants herein on behalf of Plaintiff LEQUAN ELEY (hereinafter "Eley").
5. That more than thirty (30) days have elapsed since defendants were served with the notice of claim and intention to sue on behalf on Eley, and defendants have neglected and/or refused to make adjustment or payment thereon and this action being commenced within one year and ninety days of November 3, 2017 (the date of the occurrence) after the causes of action accrued herein.
6. A hearing pursuant to General Municipal Law 50-H was held on March 8, 2018.
7. That at all times herein mentioned, the City owned, operated, controlled, managed and maintained the New York Police Department (hereinafter "NYPD").
8. The defendant Officers were at all times relevant to this complaint duly appointed and acting officers of the police department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the Commonwealth of New York and/or the City of New York.
9. The City of New York, New York, is a municipal corporation and the public employer of the said officers.

THE FACTS

10. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
11. That on November 3, 2017, near the building and premises known and designated as 1760-1762 Story Avenue, Bronx, NY, 10473, the City, by and through its officers, agents, servants and/or employees falsely arrested Eley.
12. That thereafter, the City, by and through its officers, agents, servants and/or employees, without a warrant, forcibly handcuffed, detained, arrested and imprisoned Plaintiff without Plaintiff's consent and without justification.
13. That Plaintiff's detention and imprisonment continued at various other locations, including the NYPD's Housing PSA 8 Precinct, until Plaintiff was released from custody approximately 24 hours later.
14. That during his detention and imprisonment, Plaintiff was subjected to additional indignities.

15. That the aforesaid actions by the City, by and through its officers, agents, servants and/or employees, were malicious in nature.
16. That the aforesaid actions by the City, by and through its officers, agents, servants and/or employees, were in furtherance of an illegal and unconstitutional policy of the NYPD that requires officers, under threat of adverse employment consequences, for officer misconduct against Plaintiffs, to swear to false complaints, charges and information documents.
17. That as a result of the aforesaid improper and illegal arrest and the proceedings that resulted therefrom, Plaintiff suffered and continues to suffer physical, emotional and psychological injuries, loss of liberty, embarrassment and humiliation.
18. On or about November 3, 2017 at approximately 5:30pm, **P.O. JOHN DOE #1-6** of PSA 8 randomly stopped Plaintiff **LEQUAN ELEY** near his mother's house located at 1760-1762 Story Avenue, Bronx, NY 10473. Defendant officers claimed they were arresting him for a warrant the 44th Precinct was pursuing. Plaintiff was then taken to PSA8. From PSA 8, he was transferred to Central Bookings where he remained from Friday, November 3, 2017 at approximately 10pm to Saturday, November 4, 2017 at approximately 5-5:30pm. He did not plead guilty. He did not see a lawyer or a judge and was released by an officer that said prosecution was declined.
19. At no time during the events described above, was plaintiff **LEQUAN ELEY** intoxicated, incapacitated a threat to the safety of himself or others, or disorderly. He had not committed any criminal offenses.
20. The defendant police officers had no warrant for the arrest of the plaintiff, no probable cause for the arrest of the plaintiff and no legal cause or excuse to seize the person of the plaintiff.
21. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.
22. As a direct and proximate result of the said acts of the defendant Officers, the plaintiff **LEQUAN ELEY** suffered the following injuries and damages:

- a. Violation of his constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;
 - b. Loss of his physical liberty;
 - c. Physical pain and suffering and emotional trauma and suffering, requiring the expenditure of money for treatment.
23. The actions of the defendant Officers violated the following clearly established and well settled federal constitutional rights of **LEQUAN ELEY**:
- d. Freedom from the unreasonable seizure of his person;
 - e. Freedom from the use of excessive, unreasonable and unjustified force against his person.
24. Defendant Officers observed one another violating Mr. Eley's civil rights and each made a conscious choice not to intervene.
25. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FIRST CAUSE OF ACTION AGAINST THE CITY

("Monell" Claim)

26. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
27. That the aforesaid actions by the involved NYPD officers were consistent with, in compliance with, and in furtherance of an authorized pattern and practice of the NYPD whereby persons whose civil rights were violated by NYPD officers without probable cause, without reasonable suspicion, and without justification, and an illegal and unconstitutional policy of the NYPD that requires officers, under threat of adverse employment consequences, to falsify police reports and affidavits or other supporting documentation to maliciously prosecute the victim of the police wrongdoing.
28. That the aforesaid actions of the involved NYPD officers resulted from a deliberate indifference by the City to a pattern of unconstitutional conduct by those officers.
29. That all of the foregoing causes of action fall within one of more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

SECOND CAUSE OF ACTION AGAINST THE CITY

(Punitive Damages)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
31. The NYPD sanctioned violations of Plaintiff's rights based on officers' acts, all of which were outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **LEQUAN ELEY** well being, and were based on a lack of concern and ill-will towards Plaintiff.
32. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Retention and Supervision)

33. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.
34. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **LEQUAN ELEY'S** civil rights, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY** and under authority and direction of officials at the New York City Police Department.
35. Defendants **NYC** at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.
36. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **NYC** negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **LEQUAN ELEY** of their Constitutional rights under

the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.

37. Defendants NYC knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.
38. Defendants NYC were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.
39. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants NYC and their agents, servants and/or employees, Plaintiff **LEQUAN ELEY** suffered the afore-stated injuries.
40. Prior to November 3, 2017, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.
41. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead encouraged and tolerated by the City of New York.
42. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.
43. As a result of the above described policies and customs, police officers of the City of New York, including the defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
44. Prior to on or about November 3, 2017, Defendants NYC officers were known by NYC to be unruly and to verbally threaten and to harass other human beings.

45. That defendants NYC negligently hired and trained officers, negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.
46. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.
47. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FIRST CAUSE OF ACTION AGAINST INDIVIDUAL DEFENDANTS

(42 U.S.C. § 1983)

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
49. Plaintiff LEQUAN ELEY claims damages for the injuries set forth above under 42 U.S.C. § 1983 against defendants P.O. JOHN DOE #1-6 for violation of his constitutional rights under, color of law.
50. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION AGAINST INDIVIDUAL DEFENDANTS

(False Arrest and Illegal Imprisonment)

51. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
52. Defendants P.O. JOHN DOE #1-6 illegally arrested and illegally imprisoned LEQUAN ELEY in violation of his federal constitutional rights.
53. As a result of this false arrest and illegal imprisonment, the plaintiff suffered the damages as aforesaid.
54. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Failure to Intervene to Prevent the Violation of Plaintiff's Civil Rights)

55. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.
56. As a result of the above actions, Defendants NYC individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS** failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **LEQUAN ELEY** by **OFFICERS**.
57. As a result of the foregoing, Defendants NYC individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS** displayed a deliberate indifference to Plaintiff **LEQUAN ELEY** rights to be free from unreasonable searches and seizures and excessive use of force.
58. As a result of the foregoing, Defendants NYC individually and/or vicariously by and through its agents servants, and/or employees acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to the plaintiff rights and physical well being.
59. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Intentional Infliction of Emotional Distress)

60. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.
61. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **LEQUAN ELEY** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.
62. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **LEQUAN ELEY** and injury to his good name and reputation.
63. Said harm did in fact occur in this case, in that Plaintiff **LEQUAN ELEY** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

64. By reason of the foregoing, Plaintiff **LEQUAN ELEY** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Egregious Conduct)

65. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
66. The acts of NYC complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.
67. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.
68. As a result of the above actions, Defendants NYC, individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **LEQUAN ELEY** by **OFFICERS**.
69. As a result of the foregoing, Defendants NYC individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS**, displayed a deliberate indifference to Plaintiff **LEQUAN ELEY** rights to be free from unreasonable searches and seizures.
70. As a result of the foregoing, Defendants NYC individually and/or vicariously by and through its agents servants, and/or employees, including **OFFICERS** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.
71. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the defendant on the foregoing causes of action for compensatory damages in amounts that exceed jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, against the defendant pursuant to 42 USC § 1988, and Plaintiff also demands the costs and disbursements of this action.

Dated: White Plains, NY
November 3, 2020

RAWLINS LAW, PLLC

/s/

Gary Rawlins, Esq.

Attorney for Plaintiff

LEQUAN ELEY

777 Westchester Ave

Suite #101

White Plains, NY 10604

Tel: (212) 926-0050

Fax: (347) 332-1592

TO:

CITY OF NEW YORK

Corporation Counsel

New York City Law Department

100 Church Street

New York, New York 10007

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK, COUNTY OF KINGS, ss:

LEQUAN ELEY, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, NY
November 3, 2021x L. EleySworn to before me this 3 day
of November, 2021

Notary Public

